



**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282

cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-70 5631 Charles Street – Annexation
Date: June 3, 2026

Background:

The item for consideration is an Annexation. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/08/2026
- Public Services Committee 6/15/2026
- Second reading 6/22/2026
- Public Services Committee 7/06/2026
- Third and final reading 7/13/2026

Public Comment

As of the creation of this memo (June 3, 2025), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 104 views and no comments.

Attachments:

1. Ordinance
2. Governing Body Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED SOUTH OF CHARLES STREET, EAST OF WENANDY AVENUE, AND WEST OF MCKINLEY AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) Elaine Y. Michaels, owner of N1/2 tracts of 3 and 4 Wenandy Acres has petitioned the Governing Body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LU – Land Use by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE GOVERNING BODY
JUNE 8, 2025
STAFF REPORT

FILE: PUDC-25-70: N1/2 Tract 3 & 4 - Annexation

REQUEST: An annexation of 2.69 acres of land.

LOCATION: South of Charles St, east of Wenandy Ave, west of McKinley Ave.

APPLICANT: Elaine Y Michaels

AGENT: Shane Hanson, Stiel Surveying

OWNERS: Elaine Y Michaels

PURPOSE: Residential

PREPARED BY: Morgan Dennis, Planner I



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting the annexation 2.69 acres of land to be annexed for water and sewer line and continued use of the residential property. The land is currently being used as a residence. The annexed area will be assigned a City zone based on the underlying County zone. No other applications have been submitted for this property at this time.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by an assigned City zone of AR Agricultural Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Residential	County LU	Vacant
North	Urban Residential	MR Medium-density Residential	Single-family Residential
South	Mixed-use Residential	County LU	Rural Residential
East	Mixed-use Residential	County LU	Commercial
West	Mixed-use Residential	County LU	Rural Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being within City limits, the property will receive access to City Fire and Police and sanitation services. By being within City Limits the property will be able to connect to City services.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

The property currently has residential unit and located near a City residential area. They are near urban development making this property a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the north, east, and west (Wenandy and McKinley rights-of-way are annexed to the City). The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The annexation of the property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Water and sewer utilities are within the adjacent streets.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

Wenandy Acres: N1/2 Tract 3 & 4 is roughly 72% contiguous.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on May 7, 2026. Property owners within 300-feet of the area to be annexed were also mailed notice on May 7, 2026. The

public hearing for this annexation is scheduled for June 8, 2026. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is May 8, 2026. The earliest confirmation of delivery was dated May 11, 2026.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with Commercial and Residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on May 9, 2026, and May 23, 2026.
- **Mailed Notice** was sent out by Staff on May 7, 2026, to all property owners within the annexation and within 300 feet of the area to be annexed.
- **Posted Notice** Evidence of posted notice was provided that signs were posted on May 26, 2026.
- **Internet Posting** on connect.cheyennecity.org on April 10, 2026.

As of the publication of the Staff Report (June 3, 2026), Staff has received one inquiry from the public on this project. The inquiry was just about what may be planned and there was no objection. The project page on the website has received 15 views and no comments.

STAFF REVIEW:

No major comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

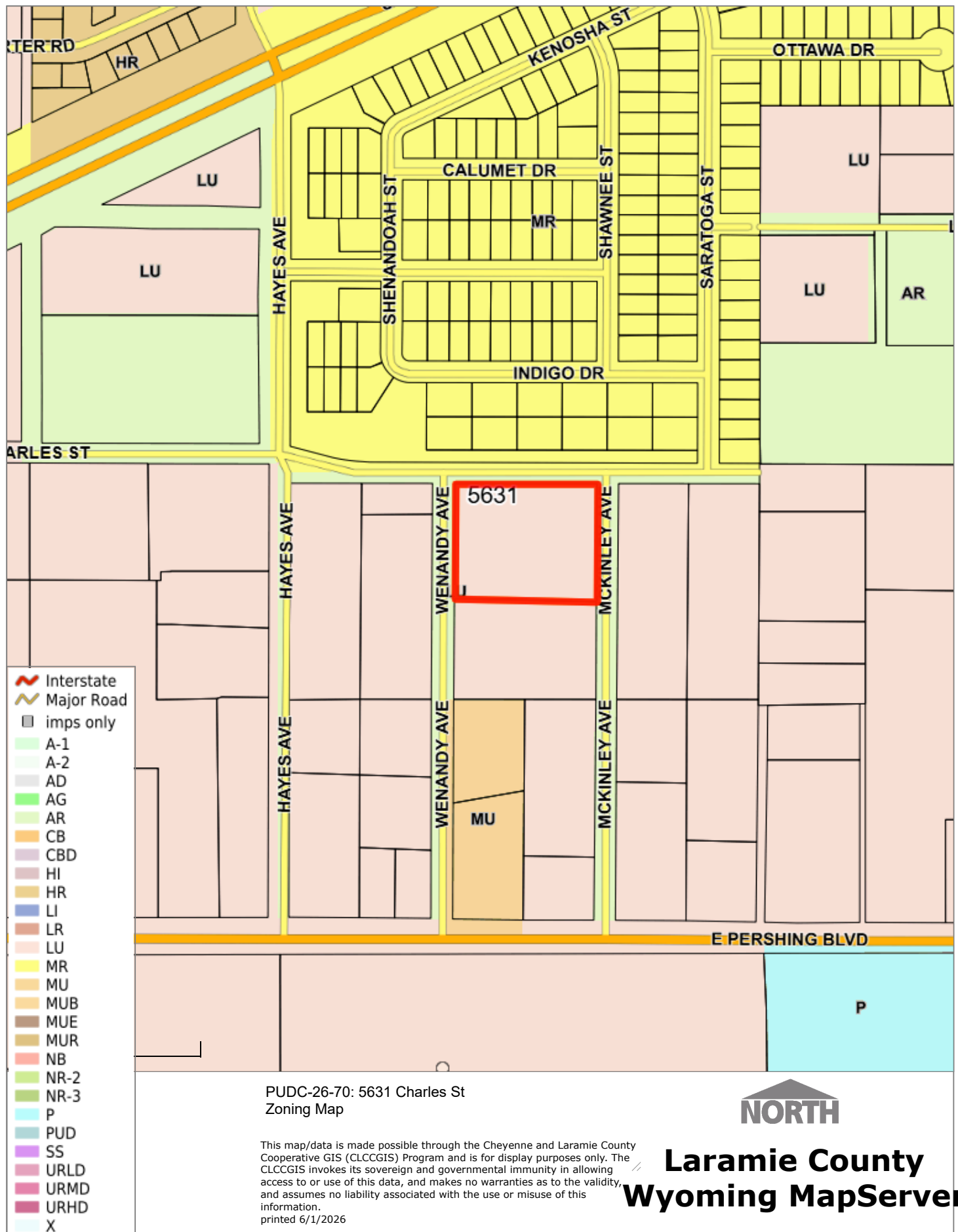
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to be extended to this property.

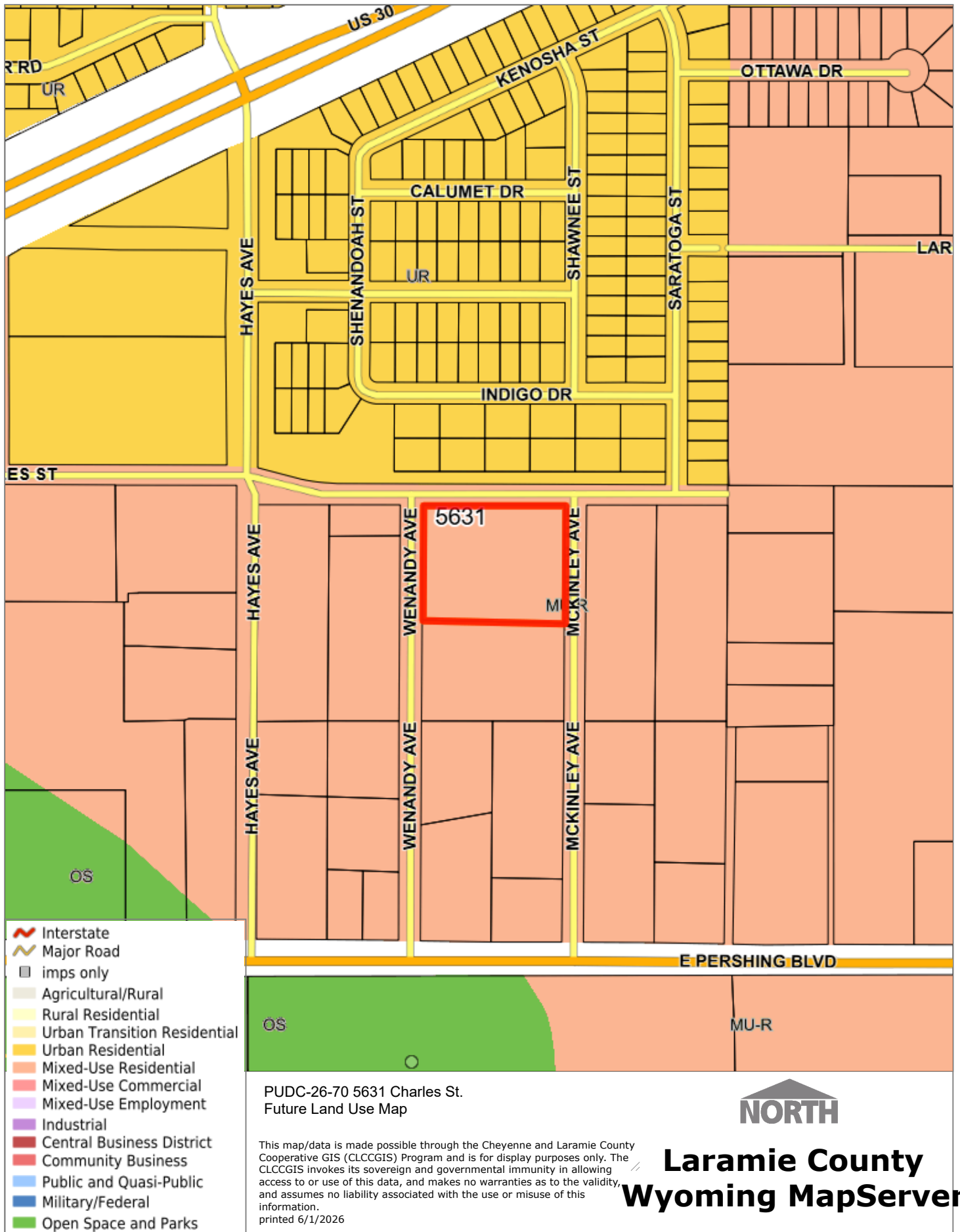
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map





C* Cheyenne, WY

June 1, 2026

Record No: PUDC-26-70

Annexation

Status: Active

Submitted On: 3/25/2026

Primary Location5631 CHARLES ST
Cheyenne, WY 82001**Owner**MICHAELS, ELAINE Y
5631 CHARLES ST CHEYENNE, WY 82001

Staff UseComments need to be sent? Official Comments for Comment Letter At least one Staff document is ready for uploading Final Decision is ready for publication 

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*



Project Name* 

MICHAELS ANNEXATION T3 AND T4
WENANDY AC.

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document [here](#).

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with or adjacent to the annexing city or town (15-1-402 a iv)* 



Percent Contiguous*

72%

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment. Check the box to acknowledge this requirement.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

 Shane Hansen
Mar 24, 2026

Attachments

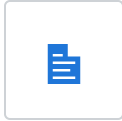
	PUDC-26-70 Schedule Letter.pdf PUDC-26-70 Application Letter.pdf Uploaded by Morgan Dennis on Apr 10, 2026 at 11:08 AM	
	26186 ANNEX-R4-29-26.pdf 26186 ANNEX-R4-29-26.pdf Uploaded by Shane Hansen on Apr 29, 2026 at 11:48 AM	
	Letter of Authorization letter-of-authorization.pdf Uploaded by Shane Hansen on Mar 24, 2026 at 10:56 AM	REQUIRED
	Annexation Petition annexation-petition.pdf Uploaded by Shane Hansen on Mar 24, 2026 at 10:56 AM	REQUIRED
	Annexation Map 26186 ANNEX-R4-29-26.pdf Uploaded by Morgan Dennis on Apr 29, 2026 at 1:02 PM  4 Versions	REQUIRED
	Board of Public Utilities Clearance Form annexation-bopu-clearance 5631 Charles.pdf Uploaded by Shane Hansen on Mar 25, 2026 at 9:37 AM	REQUIRED



Photos of Posted Notice

20260521_140857.jpg

Uploaded by Shane Hansen on May 22, 2026 at 1:42 PM



Comment Letter

responses 2.pdf

Uploaded by Shane Hansen on Apr 27, 2026 at 3:22 PM

 4 Versions

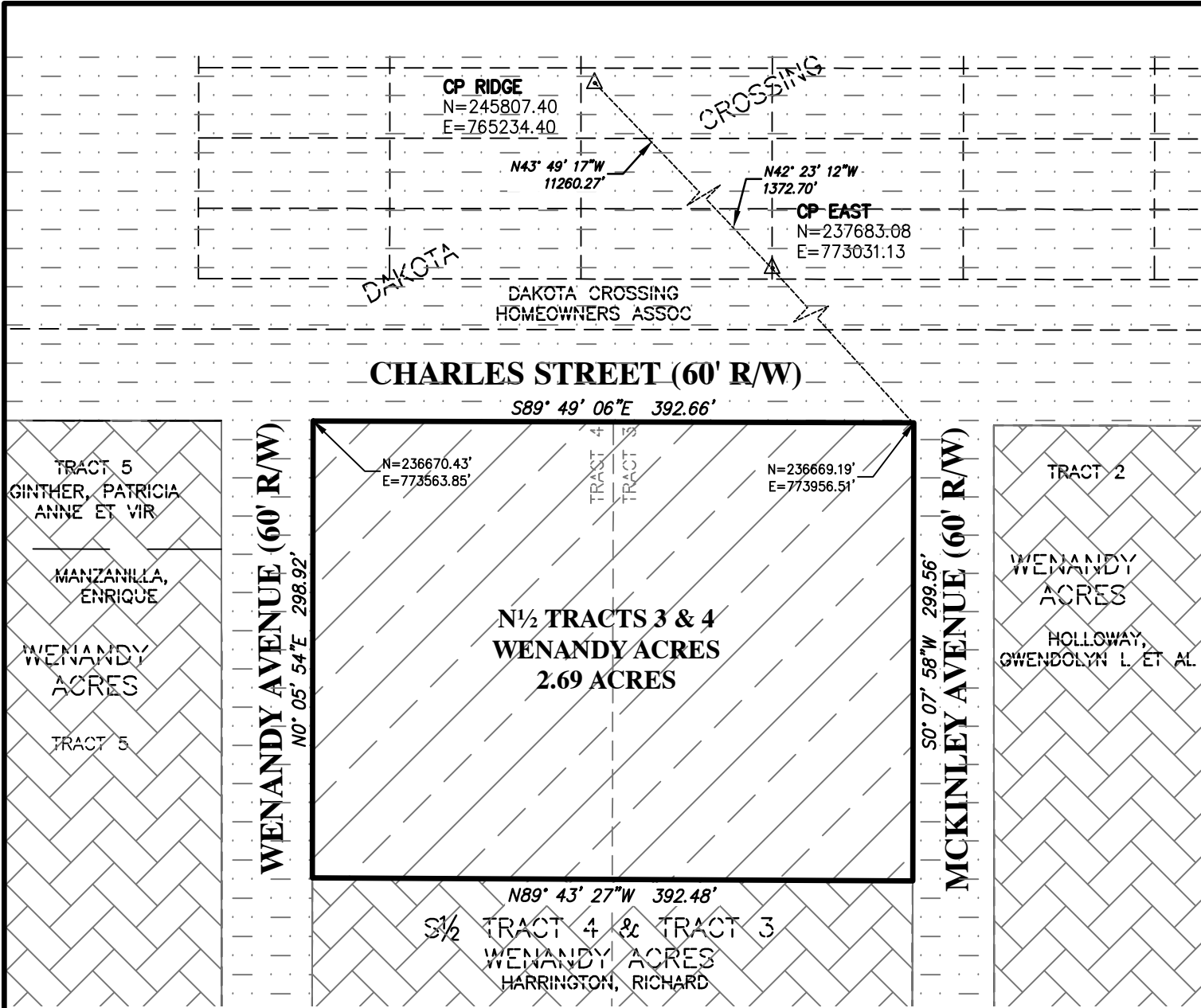


Assigned Zoning Staff Report

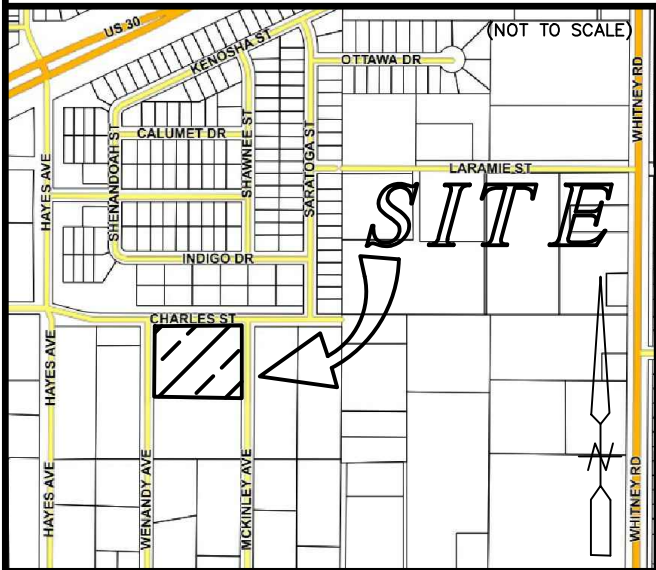
PUDC-26-70 Staff Report - Assigned Zoning.pdf

Uploaded by Morgan Dennis on May 22, 2026 at 1:37 PM

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VICINITY MAP



FILING RECORD

ANNEXATION DESCRIPTION

THE NORTH HALF (N½) OF TRACT 3 AND TRACT 4, WENANDY ACRES, SITUATE IN THE SW¼SE¼, OF SECTION 26, T.14N., R.66W., OF THE 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PIDN: AS OF 3-24-26
14662640200100

SHEET #
1 OF 1

N½ TRACT 3 AND TRACT 4,
WENANDY ACRES, CITY OF
CHEYENNE, LARAMIE COUNTY, WYOMING

REVISED: 4/27/2026
26186 ANNEX.DWG

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1108 WEST 10th ST. CHEYENNE, WY. 82001 • (307) 634-7223
256 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 582-9789
www.SteilSurvey.com • info@SteilSurvey.com



APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,
this _____ day of _____, 2026.

Mayor

ATTEST: _____
City Clerk

ANNEXATION AREA

TOTAL AREA: 2.69 ACRES

ABUTTING ANNEXATION AND RATIO TO TOTAL
PERIMETER - 72%

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011, CITY
CONTROL MONUMENTS EAST AND RIDGE.
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

LEGEND

- AREA TO BE ANNEXED
- EXISTING CITY LIMITS
- EXISTING COUNTY LIMITS



CERTIFICATE OF SURVEYOR

I, JEFFREY B. JONES, A PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THESE ANNEXATION MAPS WERE PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD AND FROM NOTES OF A SURVEY CONDUCTED BY MYSELF OR UNDER MY DIRECT SUPERVISION DURING THE MONTH OF MARCH 2026, AND THAT THIS MAP CORRECTLY REPRESENTS SAID SURVEY OF THE LAND DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.

